

VOL. 7
NEW
DELHI,
INDIA

THE VOICE EXPRESS

The Truth Takes Time.

FEBRUARY
2024
FREE —
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READERS

FROM THE EDITORS Welcome to the February 2024 edition of Voice Express. Our correspondents bring you the stories that matter — from frontlines of policy to quiet revolutions in culture and science.

LABOUR

“Aane Do Dilli, Seedha Goli Maar Denge”- Middle-Class Hostility Towards Farmers on the Rise, Turning Violent

As the 2024 Farmers' Protests bring agricultural workers to the borders of Delhi demanding a legally guaranteed MSP, a first report on rising civilian hostility — and on why middle-class apathy towards the protest has become as significant a story as the state's use of teargas and internet shutdowns to suppress it.

BY MOULI SHARMA



Amid media coverage of the 2024 Farmer's Protests lending little sympathy to agricultural workers from Delhi bordering states marching to the national capital, & plenty to the government using militant & violent means to suppress them, civilian apathy is profound. This is part one of a report on the public perception of the protest, & speculation over why it is what it is.



16th February 2024, New Delhi: The 2024 Farmer's Protests come as an outcry against the central government's ignorance & apathy of the nation's agricultural workers' issues, with their prime concern being the continued refusal to ensure an MSP to Indian Farmers as was guaranteed in both their 2014 & 2019 manifestos. In anticipation of unrest similar to the last iteration of these protests back in 2021 (wherein as well farmers from Delhi bordering States marched to the national capital in response to three then-recent legislations), the government has taken to an aggressive obstruction of Delhi borders.

But with blockades & armed personnel keeping protesting farmers out of their capital, & internet shutdowns targeting protest centres, the steps taken by the BJP-led government have quickly become less about crowd control & more about shutting down the display completely. Measures that were implemented in the hopes of preventing a violent escalation of conflict like last time have immediately turned violent themselves (read: police fire water cannons at farmers, used aerial drones to deploy teargas).

When the talks on Thursday, like the previous two rounds (on 8th & 12th February), remained inconclusive, farmers again abandoned what was a truce they'd temporarily agreed to for the discussion & stormed the Shambhu border, leading to the infamous clash at the Haryana-Punjab border, where police & paramilitary forces fired tear gas shells & rubber bullets at the crowd for the third time. This was not a regrettable result of sudden & increased agitation, but a planned & repetitive intimidation strategy, as social media accounts of the march's organisers were suspended beforehand, as were internet services in Haryana & Punjab. The government also shows no signs of regret as till now no public apology has been made, and no justifications given. Rather, to add insult to injury, an order for another 30,000 tear gas shells was placed by the Delhi Police on the same day.

CONTINUED ON PAGE 2 →

In circumstances like these, where the government itself is doing very little to save face, with the bare minimum of even PR strategies (to be discussed in part two) one would expect public outrage more than or at least close to that during the 2021 protest (which was already not extreme, & this time’s response is far more intensive). Instead, what is being observed across the nation, particularly among the residents of the capital, is widespread hostility. What started with a surprising amount of apathy has soon turned into an even more surprising amount of disgust, resentment, & vitriol against farmers. Interviews conducted by the TVE team within bustling markets & residential areas of the city reveal a disturbing reality: the ‘lying government’ is no longer the common man’s enemy, but anyone who opposes it; even if it’s another common man like himself.

Parents of children in Board grades were concerned about traffic jams during their children’s papers. Borders blockages & disturbed traffic flow for people who commute in & out of the city have become matters of inconvenience, yet who they hold accountable is not the government who’s taking these decisions but the protesters who are ‘compelling’ it to. There seems to be a collective amnesia over the fact that Delhi is not just the capital of the middle class in & around NCR but everyone, everywhere within the political boundary of this nation. That ‘Chalo Dilli’ has represented dissent, dignity, & being heard for none other than the common men who are silenced elsewhere in the country since before India was even a sovereign state.

What changed? What did the farmers do to them? What has made these normal, God-fearing men & women turn against their own kind so suddenly?

When did farmers become the enemy?

Unsubtle Influence: News & Mass Media

While it might be ideal for every citizen to know at least the basics, it is ultimately a fact that components & dynamics of the public sphere are not common knowledge. (Read Next Week: Critical Theory for the Layman: Why News Media Hides its Workings from the Common Man) This is no coincidence; the lack of transparency in the workings of mass communication models is in fact by design & the reason why they are so effective in directing public opinion. The next section will explain, without lingo or jargon, what precisely these workings are with regard to the farmers’ protest.

Consider India Today’s broadcast of footage from the Shambhu border, titled “Protesters or Rioters?” referring to visible agitation there, after Haryana Police had fired teargas shells at unarmed civilian protesters.

A pointwise discussion of farmers pelting stones at the policemen standing atop vans & armory, and vandalizing safety barriers as a 'show of strength' was all the segment had to go on about as justification of the agenda, yet there were no questions raised about the policemen themselves 'inciting a riot' when the subject of them pelting stones back at farmers came up. A part of the crowd attempting to dismantle a safety barrier that showed it falling on top of them was discussed only as a humiliating failure of an out-of-control mob, rather than anything warranting sympathy or safety concern.

This is by & large the approach that TV news channels have adopted in discussing matters of police violence toward farmers at the borders. It seems as if the very act of protesting strips you of all dignity & humanity, & thus being treated inhumanely by the government is not only acceptable but understood. Their humiliation & injury are to be celebrated; their victories & competence are to be painted as acts of organised terror.

Billionaires, Congress Goons, & Khalistanis: Branding & Prejudice

We’ll club unintentionally satirical & cartoonish news channels (See: Capital TV: Chalo Delhi 2.0 LIVE: Farmers Protest 2024 Or A Khalistani Agenda, Know The Truth | Dr. Manish Kumar) under the subhead of political commentators & miscellaneous opinion leaders in part two. For now, our assessment of public perception is concerned with the influence of formal & traditional news media, which follows at least structural if not ethical tenets of news production, & is taken seriously within the industry. An analysis of YouTube comments under India Today’s ‘Protesters or Rioters ’ broadcast revealed that large-scale support for farmers in the Indian diaspora has been replaced with the same prejudiced ideas that they had so harshly rejected the State for propagating 3 years ago, along with an added desire to see these men violently penalised, from the celebration of the militant attacks to demands for expulsion of these individuals to ‘Canada’ or ‘Pakistan.’ The hatred is communally charged & hungry to see the protesters hurt, with some even criticising the Modi regime for going too soft on them.

“Shameful comments in this forum. Calling farmers terrorists and more is a disgrace. Farmers all over north India in many states are protesting yet the media focus is on Punjab!! Punjabis are on the forefront just as Punjabis were on the forefront of fighting foreign invaders from Alexander to the Mughals. These people are not terrorists, far from!!” Supportive comments, though rare, can be found. But the unfortunate reality is that most of them come from the targeted community itself, defending, & not disagreeing.

— SUPPORTIVE COMMENTS, THOUGH RARE, CAN BE FOUND. BUT THE UNFORTUNATE REALITY IS THAT MOST OF THEM COME FROM THE TARGETED COMMUNITY ITSELF, DEFENDING, & NOT DISAGREEING.

There are three primary assumptions that hostile audiences seem to be making about the protesters, with every farmer involved in the Chalo Dilli Andolan being one, some or all of the following, all contributing to a larger narrative that feels more ‘anti-Punjabi’ than anything else:

1. Khalistanis, i.e. separatist Sikh people who want a sovereign nation for the Punjabi-Sikh community within present Indian territory.
2. Goons in bed with the opposition, the one in power in Punjab being the Indian National Congress.
3. ‘Millionaire’ farmers, or less radically understood to be landowners as opposed to cultivators, unaffected by farm laws & agricultural policy.

As of yet, there is no linkage of any of the three farmers’ groups involved in the process with ‘Khalistan’ advocates, nor with terrorist groups. Their involvement with Congress is obvious speculation, which albeit natural, still lacks evidential basis. Given the intensive crackdown on the social media accounts & internet activities of those involved in or actively supporting the protest, large-scale or organised views of the country’s agricultural masses have been shut down using British Era laws, which does no favours to the idea that the farmers complaints are anyhow disingenuous. On the contrary, nationwide participation in strikes like the Bharat Bandh which are a show of solidarity, suggests the opposite.

2021 vs 2024: Same Players, New Attitudes

It is important to note that, while hints & leads to these ideas may be found in the reportage of most news outlets, due to the striking groundlessness of each, none of the points listed out in the

“No Khalistani elements. The Govt. failed to understand the demands of poor farmers.” “Poor farmers are beaten by police.”

In contrast, the majority of the (coherent) comments this time around are:

“These are not farmers, the nation knows their intentions. All these guys are millionaires.” “My prayers go out to these Policemen. Please be safe while braving these so-called farmers.” “correction - KHALISTAN Protests 2.0” (sic) “Check these farmers’ backgrounds. They could be Abduls and Ibrahims in the guise of Taqiya Singhs and Harami Singhs.” “These Punjab farmers are a nuisance. While other state farmers are busy working hard. These Punjab farmers are destroying public property.”

Communal prejudice & slurs litter these comment sections. Public theories are always more conspiracy than fact, hate speeches seldom contain citations, & at the end of the day, people do have a right to speculate. But hatred, like empathy, does not come from vacuum. Nothing does (read: Hitler’s Propaganda Ministry: News is Not What You Think it Is). Even seemingly outlandish ideas are carefully engineered, whether intentionally or unintentionally. The opinions of those labeling all turban-wearing, tractor-driving farmers with communal slurs & vitriol are not entirely their own, just like those labeling them victims of a capitalist regime. You are a product of what you read, see & hear, & while there are aspects of choice to this exercise, the freedom is mostly illusory. Consider the following example:

Despite the brutality & lack of support they’ve been met with (except by opposition parties like Congress who have predictably taken a pro-kisaan anti-BJP stance), the farmers weather on. 2021’s ‘Chalo Dilli March’ was a victory, not only for farmers but for commoners of the entire nation, as the government finally repealed its 3 controversial farm laws after the year-long protest. But this victory did not come easy. A year-long protest on the roads of Delhi outskirts meant nights spent out in the December-January freezing temperatures & afternoons spent out during Loo season. By the end of the year, 248 farmers had lost their lives , including 8 who were killed.

Lessons from the 2021 protests have made the farmers better equipped for what is to come. They are prepared this time around, having brought trucks of food

Now consider the fact that the same visuals of food & blanket distribution were broadcast on Indian News Channels with voiceovers of Khalistani & Anti-Punjabi rhetoric. The same clips doing the rounds on mainstream channels as well as more small TV networks broadcast these for entire lengths of programs, somehow managing to frame these men, many of them aged, all of them exhausted, as national security threats for eating food & taking care of each other.

These are not luxuries. Media perception & pseudointellectual attacks on the integrity of the movement seem to imply that a paper plate containing a handful of rice & spilling over dal is the height of decadence that these supposed ‘Kulaks,’ greedy, rich landlords hailing from Punjab are rewarding themselves with, blankets & tractors being evidence of their hoarded riches. Opinion articles in the present media sphere, written by civilians without necessary journalistic or academic qualifications, reflect this mentality.

Those involved in the ongoing protest own tractors and harvesters—luxury goods that are not available to poor farm workers. They are allied with rich middlemen who are known as arhtiyas in northern India. They are already in a business where they are guaranteed a buyer and a minimum price for their principal products. In other words, the normal risks of business are reduced quite substantially for them. Now, they are looking for guaranteed offtakes and prices for all their products. They also want state-funded crop insurance cover to pretty much eliminate their risks. And they want the state to provide a monthly pension of Rs 10,000 a month to all farmers and agricultural labourers over 60, without farm owners making any contributions, unlike other businesses. One cannot blame the landlord-farmers for agitating. If they can arm-twist the rest of us taxpayers and get their way, why not? Jaithirth ‘Jerry Rao for The Print, Why is India’s Left backing rich landlord-farmers? Rao is the founder of Mphasis, & currently owns the private equity firm, Home Finance First, a company whose market cap as of 2023 is Rs. 6247 cr.

— JAITHIRTH ‘JERRY RAO FOR THE PRINT, WHY IS INDIA’S LEFT BACKING RICH LANDLORD-FARMERS? RAO IS THE FOUNDER OF MPHASIS, & CURRENTLY OWNS THE PRIVATE EQUITY FIRM, HOME

‘Protesters or Rioters?’
The Problem with TV
News

The march was again put on hold, awaiting another round of negotiations on Sunday. “When the meetings have started, if we move forward (towards Delhi) then how will meetings happen?” (Movement leader Jagjit Singh Dallewal, Charushree Chundawat, Zee Business). Update, 20th February 2024 : As of 20th February, another round of negotiations has failed , & the March resumes. Internet shutdowns in Punjab & Haryana have not been lifted, nor have border blockages.

Having established this timeline of events as it has taken place at several of Delhi’s borders, we must now look at the trajectory of its presentation & coverage in mainstream media & public perception.

report itself validated any of these claims explicitly. Even government strategy has been a lot cleverer this time around, with spokesmen advertising diplomacy & violence hiding behind censorship & military policy. So what gives?

supplies & blankets that are nightly distributed among protest members; a community taking care of its own. The wounded & injured are tended to in these hours, patched up & rested for another day of fighting.

FINANCE FIRST, A COMPANY
WHOSE MARKET CAP AS OF
2023 IS RS. 6247 CR.

CONTINUED ON PAGE 3 →

Parts of the population that have lived out not only their lives but entire generations without facing or being part of any political conflict now stand to opionate on & dismiss a national protest as a convenient act of leisurely destruction. Forgetting that hooligans don’t stick around to face teargas & rubber bullets, & neither do millionaires. Millionaires, like Jerry Rao, sit in their air-conditioned CEO quarters & read profit reports of the quarter in CRs while writing bullshit opinion pieces on issues that don’t affect them & sending them to all the newspapers that can’t afford to turn him down. Millionaires, like Jathirth, have not struggled a day in their life. They’ve found success & routine built upon generational wealth & caste privileges - which they mistake for their own hard work - & the disruption of this routine inconveniences them.

They see themselves as victims. This is what their dismissal of a capital march or a national strike as immature acts of vain, selfish ‘inconvenience’ to the common man reveal: they do not know that no one would do what the farmers are doing for frivolous reasons, because they have never had to do it themselves. They have not stood out in the sun a day in their life, let alone worked with their arms & legs. They have not had to scream over the sound of drones & loudspeakers, & eat in huddled crowds cross-legged on the burning ground.

They do not know what it takes.

What makes a protester a rioter? Or a farmers association member, a Kulak? Is it having rice & lentils in a paper plate from a ration-filled truck? Is it weathering the winds of military-grade weaponry & throwing back a stone? Is it wanting to be allowed to march into one’s own capital like any citizen of this country has a constitutional right to do? Or is it having a support system, a community, & an organised Union that doesn’t allow you to be intimidated & shut down by State forces because you are not alone.

What do the members of an organisation entitled the Samyukt Kisaan Morcha have to do to legitimise their woes & identity as cultivation workers? Go back to their field & hang themselves?

By asking & entertaining these nonsensical questions, Indian News media is not raising a query but giving you an answer, telling you what to believe, who to resent, and who to blame. The use of such consistent approaches of

Make no mistake, these reports & news bytes are not neutral or objective just by virtue of being written in the third person or being narrated in bullet points. Biases are also & especially dangerous when they are implicit, & a neutrality or an objectivity that overlooks ethical & humanitarian observations has never been a tenet of good journalism in the first place. (Read Next Week: False Neutrality: Cowardice is Not Professionalism)

An unnecessary use of sceptical language works to detract credibility from farmers & imparts to viewers an attitude of distrust toward them, all the while pretending to be written from a formal & ‘unbiased’ perspective. Farmers did not ‘claim’ to be bombarded by tear gas shells, they were bombarded by tear gas shells. These are documented & verified facts, & this presentation is disingenuous & disgraceful.

The common man seems to have forgotten that farmers are also common men, civilians, and citizens . They are also people. And it is time for him to remember.

To be Continued in Part Two

1. The Common Man’s Indifference: You are Not as Innocent as You Think
2. Pseudo Intellectualism & the Economy: ‘Opinions’ Ring Hollow in Front of Statistics of Agricultural Workers, YouTube Commentators & Intentional Misdirection
3. Independent Journalism & ‘Libtard’ Empathy: Why There is Still Hope

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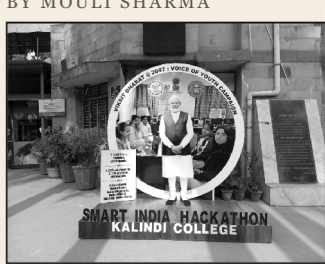
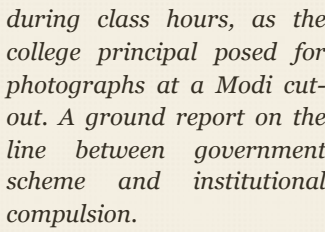
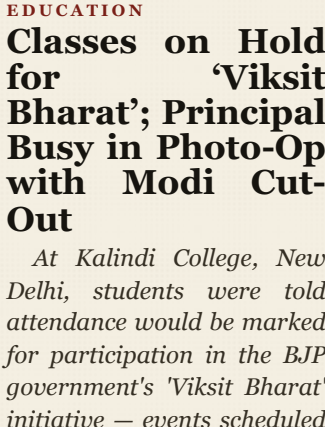
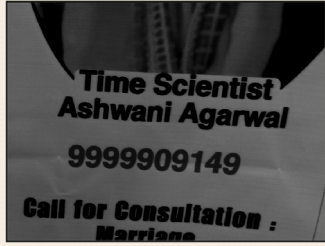
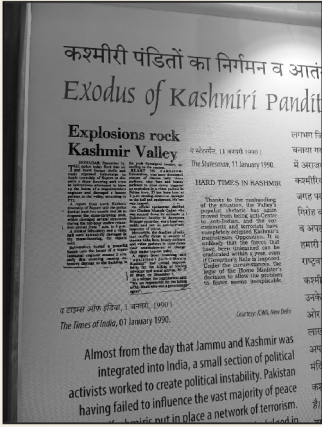
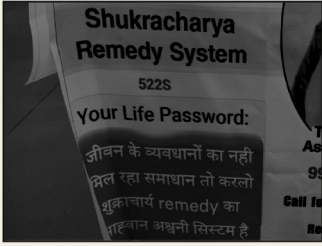
CULTURE अंधविश्वास और अन्य बकवास

A photo essay from the 52nd New Delhi World Book Fair and its unlikely neighbour, Nakshatra — the trade fair for astrology, tarot, and all things con — held side by side at Pragati Maidan. On the strange coexistence of faith and reason, superstition and literature, in one of the capital's great annual public spaces.

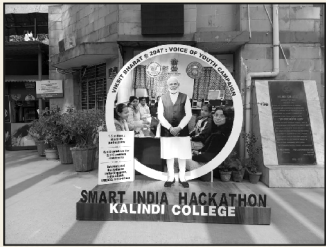
BY MOULI SHARMA



Dichotomies at the New Delhi World Book Fair cum Nakshatra 2024



‘Attendance’ to be marked for participation in ‘Viksit Bharat’ events taking place during class hours.



Photograph by The Voice Express

14th February 2024, New Delhi: The current phase of the government’s ‘Viksit Bharat’ (Developed India) initiative, “ a nationwide campaign to raise awareness through outreach activities to achieve saturation of schemes of Govt. of India across the country covering all [Local Bodies] ,” is taking place in educational institutes, including higher education institutes like the University of Delhi.

From hours-long photo ops, workshops, surveys & quizzes (take the Viksit Bharat quiz on the Hamara Sankalp Viksit Bharat website to get a certificate from PM Modi himself!) all culminating in the Viksit Bharat Pledge, a wide range of ‘events’ under the sun are taking place in various colleges of Delhi University under the aegis of internal quality assessment committees, media societies, or department management. Some colleges show no participation at all, implying that none of these are regulation procedures, & are being informally implemented. At one Kalindi College, the campaign has taken over day-hours with many of the activities directly clashing with & being given priority over lectures, & overworked faculty canceling several of the rest. But here’s the catch; attendance is still being marked.

With DU’s allotment of 5% of student’s final grade ending up at null for attendance below 67%, & arbitrary cancellation of classes around the year by professors being a regular & consequence-less matter, attending or not attending a 3-hour event can mean the difference between having ‘attended’ or not ‘attended’ 3 lectures at a time on paper, none of which were in fact conducted. This is unfair to students who travel long distances daily Kalindi, one of DU’s many sans-hostel colleges, leading to a large number of students ignoring the ‘mandatory’ attendance of these workshops to stay home & study.

reporting from multiple sources within the industry to lead audiences toward certain conclusions & determine topical priorities is known as ‘agenda setting’ a media theory developed during the 1968 US Presidential election. And within these, the subtle use of specific language to manipulate viewers & lead them toward certain conclusions should not go unnoticed.

Language & Tone:
Distrust &
Desensitization

“I haven’t been attending the events. I’m not interested. How many Youth India schemes have come before this? Have they ever improved anything?” says a student of Kalindi College’s Journalism Department, which is the most significantly impacted. One of the more recent departments to suffer mass dismissals & replacements after interviews for permanent faculty, KC’s small team of 8 professors is involved not only with its heavily stacked schedule of Viksit Bharat events within the department (being the media representatives of the college) but also with the press & coverage of all others.

With DU’s infamous academic calendar already lagging behind in the 2023-24 session as always (the even semester began a staggering 16 days after the commencement date marked on the university’s initial calendar, delaying examinations till the last week of May), ongoing faculty interviews, & the university being in the transition period of the NEP, students and faculty are already stretched thin in an attempt to complete syllabi, & these generic, unnecessary, school-like activities - being carried out under the guise of improving the reach of government schemes to secluded communities - are taking precious time away from near graduate students.

But instances like these aren’t limited to the University of Delhi. The participation statistics of the Viksit Bharat Mission quoted on their official website continue to grow, & the reality of this ‘participation’ as far as being conducted in higher education institutes is that is forced, involuntary, & consistently being carried out at the threat of academic sabotage. At the capital’s Netaji Subhash Technological University, students were handed out ‘Viksit Bharat’ promotional tasks as ‘assignments,’ failing to complete which would mean wasting their previous semester.

“We had to send in some idea related to viksit Bharat. The college people wouldn’t return our previous semester marksheets otherwise.” says a third-year B.Tech student at NSUT’s east campus.

What business do the Universities partaking in these activities have to do so? What business does the government have making them?

What part of saturating government schemes is taking a selfie with a cardboard cutout of Narendra Modi & uploading it to a gov.in website?

Source: TVE

MEDIA

Editor’s Desk:
Then They Came
for the News

An editorial invoking Martin Niemöller's 'First They Came' as an allegory for the creeping suppression of the Indian press — and a statement on what The Voice Express is choosing to stand for in calling itself a publication, not just a student blog.

BY MOULI SHARMA

If you didn’t get that joke, then you perhaps haven’t heard of Martin Niemöller, a Nazi Sympathizer turned Holocaust victim, a particular speech of whose for many a German after the war transformed the image of the Nazi party from an overambitious & unfortunate political organization to the cartoonishly evil & genocidal monsters we know & love to condemn them as today. You see, good Christian Martin here wrote a poem (yes, a speech, really, but they called it a confessional poem, & for good reason so we’ll leave it at that), & it went something like this:

First they came for the socialists, and I did not speak out— Because I was not a socialist. Then they came for the trade unionists, and I did not speak out— Because I was not a trade unionist. Then they came for the Jews, and I did not speak out— Because I was not a Jew. Then they came for me— and there was no one left to speak for me. Martin Niemöller, 1946.

— MARTIN NIEMÖLLER, 1946.

If you were here two months ago, you would remember a time when we hadn’t the confidence to call this little publication here even a news website, let alone a good, or – God forbid – honest one. Just college students trying to say what we think is worth saying, we called it instead. “Whatever literature you do find here, it isn’t yet news, not quite, but it does possess the beginnings of it,” we said.

“And it is in those beginnings that we hope to someday find the becoming’s of it, as well. Regardless of whether or not we’ll be any more qualified to declare them so then than we are now, & regardless of whether or not either of us has any business trying to find out. We might not, on both counts. But then again, what is youth if not fighting a war you did not start.”

As of 25th November 2023 (remember, remember), they’ve come first for the professors, & we’ve done nothing, because we are not professors. (Edit: As of March 2024, they've come for the activists, they've come for the farmers, they've come for the Muslims, they've come for the

POLITICS

UP Higher
Judicial Service
Rules
Amendment:
Explanation &
Analysis

An explainer on the PIL challenging Uttar Pradesh's 2023 amendment to its Higher Judicial Service Rules — what the amendment changes, why it matters beyond the legal profession, and what courts' increasing convenience with their own regulation signals for accountability under law.

BY MOULI SHARMA

What does a precedent for such judicial amendments mean for the common man? A PIL challenging the validity of Rule 5 of UP’s Higher Judicial Service Rules, 1975, in the Allahabad High Court, has brought under scrutiny its 2023 amendment & courts’ increasingly convenient interference with judicial regulation, whose notification was just issued this January. The following article explains why amendments like these affect more than just lawyers & judges, what the common man has at stake, & why speculation over why & how these decisions are taken is necessary to keep lawmaking powers accountable & in check.

UP’s Higher Judicial
Service Rules, 1975

Constitutionally, this power (to dictate & amend these rules) is granted to State Governors by Article 309 & Article 233, the latter of which specifically discusses the appointment of district judges, providing that these rules be made in consultation with the respective High Courts of the States. These articles, in accordance with which the rules are written, are a brief & recommended read, attached at the end of the article.

The 2023 Amendment
What was changed?

From LiveLaw.in’s summary of Rule 5 of U.P. Higher Judicial Service Rules, 1975 as amended in the year 2023 with the issuance of the notification dated 11th January 2024:

Rule 5 of the U.P. Higher Judicial Service Rules, 1975 provides for sources of recruitments in High Judiciary. Prior to amendment sub-rule (c) of Rule 5 provided that for direct recruitment from amongst advocates, it was necessary to have a standing of not less than 7 years as on the last date fixed for submission of the application form. By amendment notification dated 11th January 2024, sub-rule (c) was amended to the extent that the words “practicing as an Advocate” replaced the word “standing.” Upasana Agarwal, 2023

— UPASANA AGARWAL, 2023

Rule 5, Sub-rule C, Post-amendment: “ By direct recruitment from amongst the Advocates who have been, for not less than seven years, practicing as an Advocate, as on the last date fixed for the submission of application forms;

Provided that only such advocates shall be permitted to appear in the examination process who have been engaged independently for conducting not less than 30 cases (other than bunch cases) for Unreserved categories and 24 cases (other than bunch cases) for Scheduled Castes, Scheduled Tribes and Other Backward Classes in the preceding three years, from the year of publication of advertisement for recruitment, before any Court. The certificate of such independent engagement may be issued by District & Sessions Judge of the District or Registrar General/Registrar of High Courts or Secretary General of Supreme Court, as the case may be.” (sic)

Read Upasana Agarwal’s full report of the case here.

What does this mean in
layman's terms?

Essentially, the rules now dictate that for the direct recruitment of district & sessions judges, it is necessary for them to have been in practice for no less than 7 years, while merely having the standing of advocate for the same duration would have sufficed before.

This focus on quantifiable experience is further emphasised by the addition of a proviso that, in addition to this 7 years of continuous practice, also requires applicants to have been certifiably engaged in 30 independent cases (24 for reserved categories).

The change that this will bring about is to pull more active lawyers into the courts as judges, & disqualify those who have merely been making the cut due to holding the title of ‘advocate’ as opposed to actively participating.

Is the 2023
Amendment good or
bad?

‘It changes things,because obviously, you would prefer a Judge who has been practising for 7 years, rather than someone who's just waited 7 years after acquiring the title & doesn't have any real experience.’ Jia Ahuja, a journalist specialising in information property law, told TVE.

So what is the problem? How does this simple, reasonable amendment, ‘violate the Constitution’?

Why is there a PIL
against this change?

Another argument put forth by Pandey’s counsel was with of Sub-rule C (refer to earlier section), calling it ‘arbitrary’ & in violation of article 14 of the Indian Constitution (‘ The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India .’) Both of these arguments were disputed in the honourable court’s proceedings on the 7th of February, where the defending counsel brought forth an obvious conflict of interest of the petitioner, with Pandey himself being an aspirant of the higher judicial services. Against the claims of constitutional violations, it argued that constitutional articles should not be looked at in ‘isolation’ & that the Indian Constitution holistically supports & encourages the High Court's authority in making legal recommendations.

Largely, the defending counsel dismissed the petition as lacking ‘legal sanctity,’ & both parties have now been given time to exchange affidavits.

Discussion: How much
power do the courts
really have?

Just how regulated are the self-regulated?

Read for yourself:

- UP Higher Judicial Service Rules, 1975 (Pre-Amendment)
 - UP Higher Judicial Service Rules, 1975 (Amended, 2023)
 - Court Order on PIL (7th February 2024)
 - The Constitution of India, As on 26th November 2021
 - Agarwal, U. (2024, February 10). PIL In Allahabad High Court Challenges Amendment To Rule Providing For Direct Recruitment Of Advocates In UP Higher Judicial Services. LiveLaw.in
- Source: TVE

students, & they've come for the politicians, & we are much closer to an answer than we were five months ago, of exactly where in the line it is that our number falls.) So, it's safe to say, that as of November 2023, our youth means nothing. And it's about damn time then, that we start that war.

This refers to the following change:
Rule 5, Sub-rule C, Pre-amendment: “ By direct recruitment from amongst the Advocates of not less than seven years standing on the first day of January next following the year in which the notice inviting applications is published. ”

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